

Court No. - 38

Case :- WRIT - C No. - 31212 of 2018

Petitioner :- University Of Allahabad

Respondent :- State Of U.P. And 04 Others

Counsel for Petitioner :- Chandan Sharma

Counsel for Respondent :- C.S.C., Abhinav Ojha

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Rajiv Gupta, J.

As prayed, put up this case as fresh on Monday i.e. on 17.9.2018 showing the name of Sri Mahboob Ahmad, Advocate as counsel for the Electricity Department.

In the meantime, Sri Mahboob Ahmad, learned counsel for the Electricity Department may seek instructions in the matter.

Order Date :- 14.9.2018

A. Pt. Singh

(Rajiv Gupta, J.) (Abhinava Upadhyaya, J.)

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On the request of Shri Mahboob Ahmad, learned counsel for the respondents, put up tomorrow i.e. 18.9.2018 as fresh case.

Order Date :- 17.9.2018

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(Rajiv Gupta,J.) (Abhinava Upadhya,J.)

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By means of this writ petition the petitioner which is a University has challenged the demand notice dated 15.6.2018, demanding a sum of Rs. 4,19,75,527/- along with interest as dues towards Protective Load Facility utilized by the University.

Sri Chandan Sharma, learned counsel appearing for the petitioner submits that the Protective Load Facility is provided under Clause 4.27 of the Electricity Supply Code, 2005, which reads as under:

"The licensee may grant protective load in exceptional cases, to be specified in agreement to those consumers, to have opted for 24 hours use of power on following terms and conditions...."

According to Chandan Sharma the protective load facility can be granted only to such consumers who have opted for it in an agreement, according to the provisions of Electricity Supply Code mentioned above. It is further submitted that no such agreement was ever arrived at between the licensee and the petitioner, As such, Protective Load Charge cannot be levied on the petitioner. He has relied upon a decision of this Court in the similar facts and circumstances passed in **Writ - C No. 2788 of 2013 (M/S Allahabad Enterprises Pvt. Ltd. vs. State of U.P. and others)**, wherein this Court after considering the provisions of Para 4.27 of the Electricity Supply Code, 2005 and Clause 10 of the general condition of tariff order 2010 allowed the writ petition on the ground that there was no agreement between the parties.

Sri Mahboob Ahmad, learned counsel appearing for the Electricity Department-respondents No. 4 and 5 has drawn our attention to a letter dated

20.3.2010 written by the University filed as Annexure 2 to the writ petition. According to him the University itself has demanded rostering free power supply through dedicated feeder from U.P. Power Corporation by establishing a 33/11 KV sub-station.

With this letter, Sri Mahboob Ahmad submits that University itself desired for uninterrupted power supply free from rostering, which has been provided to them. He further submits that University has accepted the said facility and has been paying the power tariff since 2013 of 25% of Protective Load Charge and has shown a chart to that effect but the same is not been paid since 2016. He next submits that the matter was taken before the Uttar Pradesh Electricity Regulatory Commission where an order has been passed that such 25% of Protective Load Charge is applicable only to such consumers who are under the category LMV-4 and not HV-1. The Commission has held the University to be a consumer under HV-1 and, therefore, this 25% rebate is also not available to the University and 100% is leviable. An order in this regard has been passed on 11.5.2015.

Sri Mahboob Ahmad further submits that once this order has been passed the respondent No. 4 and 5, who are merely licensee, have no option other than to levy 100% of Protective Load Charge. He further submits that this order has not been challenged by the University and, therefore, the same has become final and now the University cannot deny its liability.

We have considered this submission of learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for respondent No. 4 and 5.

In our considered view the University is a public institution and doing public service of granting higher education and facilitating research work in the country. The University deserves 24 hours uninterrupted power supply and it would be advisable that high officials of power department as well as the university should sit together and figure out a via-media so that there is no loss to

the electricity generating company and the University will get the power supply for its functioning.

At this stage, we are of the considered opinion that the Chief Engineer, Purvanchal Vidyut Vitran Nigam Limited, Allahabad and Registrar of the University shall have a meeting and discuss this question.

The writ petition is **disposed of** with the direction that the Chief Engineer, Purvanchal Vidyut Vitran Nigam Limited, Allahabad and the Registrar will hold a meeting and deliberate upon the dispute with regard to the Protective Load Charge and the outstanding demand made from the University.

The said decision be taken in accordance with law within a period of two months.

For a period of two months no coercive steps shall be taken against the petitioner towards demand notice dated 15th June, 2018 (Annexure 1 to the writ petition).

It is made clear that the meeting of the Chief Engineer and the Registrar would be held upon a representation being made by the University highlighting its objection with regard to Protective Load Charge along with a certified copy of this order.

Order Date :- 18.9.2018
C. MANI

(Rajiv Gupta, J.) (Abhinava Upadhya, J.)